

23STCV02342 23STCV02342

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-06-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C06%2F25%2F2026

Source SHA-256: 49edb0a6e47ba06711134ef462769c233ed6760b2c4e2c4ee98ac462beecc859

Case Number: 23STCV02342 Hearing Date: June 25, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

GEORGE

ANDRAOS

Plaintiff,

v.

LIFETIME HOME

BUILDERS, INC., et al.,

Defendants.

Case No:

23STCV02342

Hearing Date: June 25, 2026

Calendar Number: 2

Defendant

Lifetime Builders, Inc. moves to compel Plaintiff George Andraos' responses to Form Interrogatories, Special Interrogatories and to Deem Requests for Admissions Admitted.

Defendant's

motions are DENIED as moot.

Defendant's

request for sanctions is GRANTED. Plaintiff is ordered to pay Defendant sanctions in the amount of \$2,120 within 20 days of this order.

Background

This is an

action for breach of the contract.

On February 2, 2023, Plaintiff George Andraos ("Plaintiff") filed a complaint against Defendants

Lifetime Home Builders, Inc., Altisource Solutions, Inc., dba Granite Risk

Management, alleging causes of action for breach of contract, intentional misrepresentation and negligence.

Plaintiff alleges that commencing in or

about August 2, 2019, Plaintiff and Defendant entered into a written agreement

for Defendants to provide certain home improvement services to Plaintiff's

residence. Defendants performed most of these services below industry and trade

standards and not in a workmanlike quality.

On

May 13, 2026, Defendant Lifetime Builders, Inc. ("Defendant") filed these

motions to compel Plaintiff's responses to Form Interrogatories, Special

Interrogatories,

On

May 14, 2026, Defendant filed this motion to Deem Requests for Admissions

Admitted.

On

June 11, 2026, Plaintiff filed an Opposition.

Legal Standard

Compel Interrogatories

If a party to whom interrogatories are directed fails to

serve a timely response, the propounding party may move for an order compelling

responses and for a monetary sanction.

(Code Civ. Proc., § 2030.290, subd. (b).) The statute contains no time

limit for a motion to compel where no responses have been served. All that need

be shown in the moving papers is that a set of interrogatories was properly

served on the opposing party, that the time to respond has expired, and that no

response of any kind has been served. (Leach

v. Superior Court (1980) 111 Cal.App.3d 902, 905–906.)

Deem

RFAs Admitted

“If a party to whom requests for admission are

directed fails to serve a timely response, the following rules apply: The

requesting party may move for an order that the genuineness of any documents

and the truth of any matters specified in the requests be deemed admitted.... (Code

Civ. Proc. § 2033.280(b).) The Court, on motion, may relieve that party from this waiver on its

determination that both of the following conditions are satisfied: (1) The

party has subsequently served a response that is in substantial compliance with

Sections 2033.210, 2033.220, and 2033.230. (2) the party's failure to serve a

timely response was the result of mistake, inadvertence, or excusable neglect....

(Code Civ. Proc. § 2033.280(a).) The court shall make this

order, unless it finds that the party to whom the requests for admission have

been directed has served, before the hearing on the motion, a proposed response

to the requests for admission that is in substantial compliance with Section

2033.220. (Code Civ. Proc. § 2033.280(c).)

Sanctions

Sanctions are mandatory in connection

with a motion to deem matters specified in a request for admissions as true.

Sanctions are also mandatory in connection with motions to compel responses to interrogatories against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel unless the court “finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. §§ 2030.290(c), 2033.280(c).)

Discussion

On February 11, 2026, Defendant served Form Interrogatories, Special Interrogatories, and Request for Admissions, Sets One, on Plaintiff. (Weinberg Decl., Exh. 1.) Responses were due by March 16, 2026. Despite several extensions to provide responses, Plaintiff has failed to. (Id.)

In opposition, Plaintiff argues that responses will be provided before the hearing.

As such, the motions are denied as moot. In the event Plaintiff fails to provide responses prior to the hearing, Defendant shall inform the Court, and the motions will be granted.

However, while Plaintiff asks that the Court deny the request for sanctions, Plaintiff fails to provide any justification for the failure to provide timely responses. Further, sanctions

in connection with a motion to deem requests for admissions are mandatory with no exceptions. As such, Defendant's request for sanctions is granted.

Defendant seeks sanctions in the amount of \$3,284.75 for the motion to compel responses to form interrogatories, \$584.75 for the motion to compel responses to special interrogatories, and \$1,284.75 for the motion to deem requests for admissions admitted.

Defendant's request for sanctions is reduced due to the simplicity of the motions and the nature of the concurrent facts. Thus,

Plaintiff is ordered to pay Defendant sanctions in the amount of \$2,120 (\$400 per hour for 5 hours, plus \$120 filing fees), within 20 days of this order.